

rule prevents the trial court from rendering an appeal futile by altering the appealed judgment or order by conducting other proceedings that may affect it. (*In re Marriage of Horowitz* (1984) 159 Cal.App.3d 377, 381.)

“Accordingly, whether a matter is 'embraced' in or 'affected' by a judgment within the meaning of section 916 depends upon whether postjudgment trial court proceedings on the particular matter would have any impact on the 'effectiveness' of the appeal. If so, the proceedings are stayed; if not, the proceedings are permitted.” (*Ibid.*; see also, *Elsa v. Saberi* (1992) 4 Cal.App.4th 625, 629.)

Granting this motion would dismiss the action entirely, rendering the appeal moot. Accordingly, the Court declines to rule pending resolution of the appeal. Defendant may re-notice the motion after the remittitur issues.

5. 9:00 AM CASE NUMBER: C22-01563
CASE NAME: CATHERINE ANGWIN GASCA VS. CITY OF BRENTWOOD
HEARING ON SUMMARY MOTION
FILED BY:

TENTATIVE RULING:

The City of Brentwood’s motion for summary judgment and/or adjudication is **denied**.

The City brings this a motion for summary judgment, or alternatively, a motion for summary adjudication, however, the notice of motion did not specify the issues for adjudication. (Rules of Court, rule 3.1350(b).) Further, the issues listed in the separate statement are not issues appropriate for adjudication. “A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” (Code Civ. Proc., § 437c(f)(1).) Finally, there is only one cause of action for dangerous condition of public property alleged against the City and thus, this motion is properly one for summary judgment only.

Plaintiff alleges that on June 18, 2021, she “tripped and fell on or near Garin Pkwy and Sunset Rd., Brentwood, County of Contra Costa, on a pre-existing uneven sidewalk, owned or controlled by City of Brentwood”. (Comp. p. 4.)

A claim for dangerous condition of public property is permitted by statute, Government Code section 835. “That statute provides in pertinent part that ‘a public entity is liable for injury caused by a dangerous condition of its property if the plaintiff establishes that the property was in a dangerous condition at the time of the injury, that the injury was proximately caused by the dangerous condition, that the dangerous condition created a reasonably foreseeable risk of the kind of injury which was incurred, and either: [¶] (a) A negligent or wrongful act or omission of an employee of the public entity within the scope of his employment created the dangerous condition; or [¶] (b) The public entity had actual or constructive notice of the dangerous condition... ’ (Gov. Code, § 835.)” (*Zelig v. County of Los Angeles* (2002) 27 Cal.4th 1112, 1133.)

There are two main issues here: (1) whether the defect in the sidewalk was a dangerous condition and (2) whether the City had notice of the defect.

Dangerous Condition

Government Code section 830 defines a dangerous condition as “a condition of property that creates a substantial (as distinguished from a minor, trivial or insignificant) risk of injury when such property or adjacent property is used with due care in a manner in which it is reasonably foreseeable that it will be used.”

“The existence of a dangerous condition ordinarily is a question of fact, but the issue may be resolved as a matter of law if reasonable minds can come to only one conclusion. (*Peterson v. San Francisco Community College Dist.*, *supra*, 36 Cal. 3d at p. 810.)” (*Zelig*, *supra*, 27 Cal.4th at 1133.) “ ‘Where reasonable minds can reach only one conclusion—that there was no substantial risk of injury—the issue is a question of law, properly resolved by way of summary judgment.’ ” [Citations.]” (*Stathoulis v. City of Montebello* (2008) 164 Cal.App.4th 559, 567.)

In sidewalk cases, courts are encouraged not to rely solely on the measurement of the defect. “ ‘[A]lthough the defect's size “may be one of the most relevant factors” to the court’s decision.’ [Citations.] ‘Instead, the court should determine whether there existed any circumstances surrounding the accident which might have rendered the defect more dangerous than its mere abstract depth would indicate.’ [Citation.]” (*Stack v. City of Lemoore* (2023) 91 Cal.App.5th 102, 113; see also, *Felder v. City of Glendale* (1977) 71 Cal.App.3d 719, 728.)

The City cites to *Stathoulis*, *supra*, and *Huckey v. City of Temecula* (2019) 37 Cal. App. 5th 1092, 1104 to argue that a defect of less than one and half inches are trivial. As Plaintiff points out, however, the defects in *Stathoulis* and *Huckey* were less than one inch. As explained in *Stack*, *supra*, “[w]e are aware of only one case to squarely hold a sidewalk defect of one and one-half inches or greater not to be a dangerous condition as a matter of law. (See *Beck [v. Palo Alto]* (1957) 150 Cal.App.2d [39,] 43–44 [maximum one- and seven-eighths-inch-deep sidewalk defect].) *Nicholson v. Los Angeles* (1936) 5 Cal.2d 361 is the case most commonly cited in support of the purported one- and one-half-inch threshold; but while that case indeed featured a maximum one- and one-half-inch-deep sidewalk defect, the Supreme Court did not decide whether or not the defect was dangerous as a matter of law. Rather, the court assumed it *was* dangerous...” (*Stack*, *supra*, 91 Cal.App.4th at 112 fn. 8.) “ ‘[W]hen the size of the depression begins to stretch *beyond one inch* the courts have been reluctant to find that the defect is not dangerous as a matter of law,’ i.e., that it is minor or trivial. [Citation.]” (*Ibid.*)

Here, the City argues that the defect in the sidewalk was trivial. For this argument, they rely on the declaration of Brad Wong, a professional mechanical engineer. Wong inspected the area on March 15, 2024, three years after the accident. He noted that the City had already repaired the sidewalk by grinding it down. He also reviewed the photographs taken by Plaintiff’s husband. (Wong dec. ex. B.) According to Wong, his measurements of the height differential were 5/8th of an inch or less. (Wong dec. ¶4.)

The photographs taken by Plaintiff’s husband show a key and then a thumb in the sidewalk depression to show the amount of the depression. These photographs were taken within two weeks of the accident, before the defect was repaired. (Gasca depo. 72:15-16.) Wong does not explain

whether these photographs were taken into consideration with his analysis. Further, Wong does not explain whether he took measurements of the key or the husband's thumb or requested such measurements. Finally, Wong's analysis occurred after the sidewalk was repaired and he has not sufficiently explained why his measurements of the repaired sidewalk can be used to show the nature of the defect when the accident occurred. Plaintiff's objection number 18 to Wong's declaration paragraph 4 is sustained.

Overall, the Court finds that Wong's declaration is insufficient to show that the defect was below one inch at the time of the accident. The City has not convinced the Court that the defect is trivial as a matter of law and has not met their burden on this issue.

To the extent, the City has met their burden on this issue, there is a triable issue of material fact. Plaintiff provides a photograph of the key used in the sidewalk photographs with a measuring tape. (Gasca dec. ex. 1 and 2; see also Gasca depo. 72:15-16; 74:14-23.) Considering Plaintiff's husband's photographs and the photograph of the key with the measuring tape, the sidewalk defect appears to be over 1 1/4 inches. Given that the defect appears to be more than one inch, the Court finds that there is a triable issue of material fact regarding whether the defect was trivial.

The City argues that Plaintiff's identification of the fall location in the photographs should be discounted because Plaintiff could not identify the fall location on Google map photographs. The testimony cited by the City does not support such a broad statement. Rather, it appears that in her deposition, Plaintiff did not identify the street names where the accident occurred. (See, fact 9: Gasca Depo 18:17-20.) Further, Plaintiff also testified that the photographs taken by her husband showed the location of her fall. (Gasca depo. 75:7-15.)

The City also argues that the other factors, including lack of prior accidents and the accident occurring in daylight, should be considered when determining whether there is a trivial defect. While these factors may be considered at trial, given the nature of the sidewalk depression here, the Court is not convinced that these other factors can sufficiently overcome the sidewalk differential to allow the Court to find the lack of a dangerous condition as a matter of law.

The City also argues that Plaintiff was prone to falls and other injuries. The City cites no case holding that Plaintiff's medical history and her physical condition at the time of the accident are factors to be considered when deciding whether the defect was trivial.

Notice of the Dangerous Condition

At trial, Plaintiff must show that the City had actual or constructive notice of the dangerous condition. While Plaintiff has the burden of proving notice at trial, the City has the burden on this motion of showing a lack of notice (both actual and constructive) or showing that Plaintiff does not have evidence to show notice.

""To establish actual notice, '[t]here must be some evidence that the employees had knowledge of the particular dangerous condition in question'; 'it is not enough to show that the [public entity's] employees had a general knowledge' that the condition can sometimes occur."

[Citation.] To establish constructive notice, the plaintiff must prove “the condition had existed for such a period of time and was of such an obvious nature that the public entity, in the exercise of due care, should have discovered the condition and its dangerous character.” (§ 835.2, subd. (b).)’ [Citation.] ” (*Restivo v. City of Petaluma* (2025) 111 Cal.App.5th 267, 275.)

The City points to special interrogatories where Plaintiff was asked if she contends that the City had actual or constructive notice of the defect and then, that same interrogatory also asked Plaintiff to state all facts in support of that contention. (Ex. D-2, interrogatories 14 and 17.) Plaintiff’s interrogatory responses was “yes” and she did not list any facts in support of the contention. But these interrogatories included two questions and thus, violated the rules of discovery. (Code Civ. Proc., § 2030.060(f) [“No specially prepared interrogatory shall contain subparts, or a compound, conjunctive, or disjunctive question.”].) The Court finds that Plaintiff’s interrogatory responses to 14 and 17 cannot be used as factually devoid responses and thus, cannot be used to shift the burden here.

The City points to Plaintiff’ deposition where she testified that she did not know whether the City had notice of the condition. (Gasca depo. 32:2-23.) Plaintiff’s testimony as to her understanding of City’s knowledge of the condition does not shift the burden as Plaintiff is not expected to know whether or not the City had notice of the condition.

Finally, the City’s evidence includes a declaration by Chris Ziemann, Streets Manager, declaring that the City received no reported incidents for the accident area from 2016 to 2022. (Ziemann dec.) Ziemann’s declaration might be sufficient to shift the burden on actual notice, but it does not show whether the City had constructive notice.

The City also points to contracts with had with Precision Emprise, but fail to show how those contracts addressed the issue of the City’s knowledge of the defect.

In reply, the City relies on deposition testimony from Ziemann to try to show that the City regularly inspected the sidewalk, and thus did not have constructive notice. In some cases, a public entity can shift the burden by showing the last time they inspected the area and that they found no dangerous condition. (See, .e.g. Government Code section 835.2(b)(1), (2).) Is that this argument and the evidence should have been presented in the moving papers. The City could have included this evidence by adding it in Ziemann’s declaration. And in any event, in Ziemann’s deposition he testified that no one inspected that portion of the sidewalk between 2007 and November 2021. (Ziemann depo. 43:18-44:24.) The failure to inspect a sidewalk for five years before the accident occurred is insufficient to show that the City did not have constructive notice of the dangerous condition.

The Court finds that the City has not met its burden of showing a lack of constructive notice of the dangerous condition.

Objections to Evidence

The Court declines to rule on objections 1 through 17, as the medical records were not

material to the disposition of this motion. (Code of Civil Procedure section 473c(q).)

Objection 18 is sustained.

6. 9:00 AM CASE NUMBER: C22-01601
CASE NAME: CLAYTON VALLEY SHOPPING CENTER, LLC, A CALIFORNIA LIMITED LIABILITY COMPANY VS. MATT DELIMA
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE FRANK D. PRESTO III**
FILED BY: KNM CLAYTON, LLC
TENTATIVE RULING:

Summary

This tentative ruling applies to Lines 6, 7 and 8. After review of the moving papers, and declarations of Counsel Frank D. Presto III, who is Counsel of Record for Defendants Matt Delima, Jason Haugen, and KNM Clayton, LLC's, the Court finds good cause to grant his Motion to be Relieved as Counsel of Record for Defendants. Mr. Presto's Motions to Be Relieved as Counsel of Record for Matt Delima, Jason Haugen and KNM Clayton LLC are **granted**.

The Court will execute the three proposed orders lodged with the Court on March 12, 2026. Counsel is ordered to provide notice of the Trial Readiness Conference and Jury Trial scheduled for May 5 and May 18, 2026 to his former clients. No appearance is required at the hearing on April 29, 2026.

7. 9:00 AM CASE NUMBER: C22-01601
CASE NAME: CLAYTON VALLEY SHOPPING CENTER, LLC, A CALIFORNIA LIMITED LIABILITY COMPANY VS. MATT DELIMA
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE FRANK D. PRESTO III**
FILED BY: HAUGEN, JASON
TENTATIVE RULING:

See Line 6, above.

8. 9:00 AM CASE NUMBER: C22-01601
CASE NAME: CLAYTON VALLEY SHOPPING CENTER, LLC, A CALIFORNIA LIMITED LIABILITY COMPANY VS. MATT DELIMA
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE FRANK D. PRESTO III**
FILED BY: DELIMA, MATT
TENTATIVE RULING:

See Line 6, above.